SPITZKOP FARM RESIDENTS ASSOCIATION
versus
DIANA CATHERINE RODRIGUES
and
REGISTRAR OF DEEDS N.O
and
UREBAI RODRIGUES
and
TINASHE MANANZVA

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 30 October 2025 and 13 March 2026

Application for Leave To Appeal

Artmore Chinoyevedza, for the applicant
Adv *T Mpofu*, for the 1st respondent
Adv *Zhuwarara*, for the 2nd, 3rd and 4th respondents

TAKUVA J: This is an application foe leave to appeal to the Supreme Court in terms of s 43(2)(d) of the High Court Act [*Chapter 7:06*] as read with r 94 of the High Court Rules 2021. The appeal is against the judgment of this court wherein I granted an application for rescission of a default judgment.

BACKGROUND FACTS

There is a dispute over ownership of Lot 10A and Lot 11 of SPITZKOP FARM. The property was placed under the applocant's name pursuant to an order granted under HCH 3862/20 on 26 November 2020 in default of the first respondent in this matter. Dissatisfied with this decision first respondent filed an application for rescission under case no HCH 3671/24. The application for rescission was granted on 30 July 2025. The applicant was aggrieved and filed this application for leave to appeal to the Supreme Court.

APPLICANT'S CASE

The applicant contended that it has good prospects of success on appeal because of the following reasons;

Firstly, it was argued that the court decided the matter without hearing argument on the merits. The contention being that the applicant was denied an opportunity to present full argument on the merits in breach of the *audi alteram partem* principle.

Secondly, it was submitted that the application was instituted against a deceased person namely Urebai Rodrigues who had passed away long before proceedings were initiated.

Thirdly, it was argued that the court erred by granting an order in favour of a party that was "forever barred" in terms of s 8 of the Titles Registration and Derelict Lands Act [*Chapter 20:20*] from asserting title or interest in the property.

Finally, it was submitted that the court failed to appreciate that in terms of s 13 of the Titles, Registration and Derelict Lands Act, once a title has been registered pursuant to a lawful court order such title is conclusive and can not be annulled, limited or affected on any ground. Therefore, so the argument went, the rescission order was incapable of reversing title that had already vested in the applicant.

FIRST RESPONDENT'S CASE

The application was opposed by the first respondent on the following grounds;

1. The court *a quo* did not determine the merits of the rescission application without affording the appellant an opportunity to be heard therein.
2. It is the applicant that cited a deceased party under HCH 3862/20. Therefore, the first respondent could not alter the citation of the parties in a case she was challenging as she was bound to follow the citation depicted in the order to be rescinded.
3. The applicant's reliance on s 8 of the Titles Registration and Derelict Lands Act is misplaced in that the court found that applicant had not complied with its provisions in that the documents used by the applicant in the main matter relate to a different property.
4. The submission that the court erred in law in granting rescission in circumstances where title had already vested pursuant to a lawful order granted under the Titles

Registration and Derelict Lands Act, has no merit in that the Act does not say once land is transferred in accordance with this Act, such transfer can not be cancelled.

5. There is no rule or judgment to the effect that a default judgment under the Titles Registration and Derelict Lands Act can not be set aside.

LAW AND ANALYSIS

One of the issues in an application for leave to appeal is the existence or otherwise of reasonable prospects of success. In *Essop* v *The State* 31/2016 (2016) ZASCA 114 it was stated that "what the test for reasonable prospects of success postulates is a dispassionate decision based on the facts and the law, that a court of appeal could reasonably arrive at a conclusion different to that of the trial court. In order to succeed, therefore, the appellant must convince this court on proper grounds that he has prospects of success on appeal and that those prospects are not remote, but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case can not be categorised as hopeless. There must in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal."

In the first ground of appeal, the applicant claims that his right to be heard was breached. It is trite in our law that the right to be heard is a fundamental right that should not lightly denied to a party. In *Zesa Enterprise (Pvt) Ltd Ltd* v *Stevano* (civil Appeal SC 147/15, the court held that "The right to be heard is a fundamental cornerstone of our law. It is a fundamental, principle of the rules of natural justice forming the backbone of a fair hearing enshrined in our constitution as read with the Administrative Justice Act [*Chapter 10:28*]. The maxim that no one shall be condemned without being heard holds sway in our law."

In *casu*, the points *in limine* taken by the first respondent were so intricately linked to the merits that parties argued the merits of the matter. In the circumstances the applicant can not claim not to have been afforded a right to be heard as all the issues the court's determination touches were properly addressed by the litigants in both their oral submissions.

As regards, the second ground, the record shows that the third respondent passed away in the year 2004. The applicant instituted these proceedings 16 years after the fact that forced the first respondent to respond to the same. Clearly, the first respondent could not alter the citation

of the parties in a case she was challenging. First respondent is bound to follow the citation depicted in the order sought to be rescinded.

Further, if the applicant is adamant that the citation of a non-existent party vitiated the proceedings *in limine* and rendered the application for rescission a nullity *ab initio*, what then becomes of the main matter filed by them under HC 3862/20 wherein the same non-existent party was cited? That it is a legal impropriety to cite and sue a deceased person is trite in our law -See *Nyandoro* v *Nyandoro & Ors* 2008(2) ZLR 219 P 222-223C.

I find as a matter of fact that the citation of parties in the application for rescission followed the main matter, this is why the first respondent did not seek an order against a deceased person.

The third ground relates to the accusation that this court erred by granting rescission to a party explicitly barred by statute from challenging the order. Section 8 of the Titles Registration and Derelict Lands Act states;

> "8. Upon considering any application for registration of title, the High Court or judge may, if such court or judge considers it expedient to do so grant an order setting forth the description of the property mentioned in such petition and calling upon all persons having or pretending to have any right or title to such property to appear and establish their claims to the same upon some day to be named in the rule, or to be forever barred therefrom, and may direct the mode of service or publication of such order."

In the present matter, the applicant did not meet the requirements as set out in s 8. To start with the applicant from its founding affidavits to its advertisement of its provisional and final order in the Herald Newspapers, related to a different Deed number from that of the first respondent herein.

Further, the application and founding affidavit as well as the Draft Order referred to Deed of Transfer No. 2563/88, which does not relate to first respondent's land. The Act specifically requires that the description of the property be set forth. In *casu*, it was not done in that all the provisional orders were based on a wrong deed that is Deed of Transfer 2563/88 instead of 2568/88.

It is also not denied that the first respondent's name was not cited in full in that the adverts cited Urebai Rodrigues and Ors. This is in my view vague as the question becomes who are "others." The requirement relating to notice calling upon all persons having title or pretending to have any right to such property to appear and establish their claim, was clearly not

met. I find that it is only the late Urebai Rodrigues and others who were invited and it is these who are forever barred. As regards the first respondent there is no way she could have come to make representations and defend rights in a property that has nothing to do with her.

In my opinion, the finding that the applicant did not meet the requirement of the alleged bar is the correct one and there are no prospects of the Supreme Court finding otherwise.

The fourth and final ground relates to the conclusiveness of title under s 13 of the Titles, Registration and Derelict Lands Act. Applicant's argument here is that the court failed to appreciate that in terms of s 13 of the Act once a title has been registered, such title is conclusive and can not be annulled. Section 13 states;

> "13 Every registration of immovable property made in favour of any person in pursuance of any order granted under this Act shall have the effect of vesting such person with a title and right to such property which shall and shall not respectively, be liable to be annulled, set aside limited and affected on every ground and by reason of every and any cause, matter or thing by reason of which the title and right of such person to such property would or would not have been liable to be an annulled, set aside, limited, or affected if such property had been regularly transferred to and in favour of such person and in favour successively of every person through or from whom his right was derived or acquired."

In my view, the clear meaning is that the transfer can be annulled or set aside like in the normal transfer. The law has no bar to the application for rescission of default judgments which resulted in transfer of title. Also, the intended appeal is made against an interlocutory order which is not final and dispositive of the matter. In our jurisdiction, the right to appeal against interlocutory orders is limited to ensure the efficient administration of justice. See *Latric Investments (Pvt) Ltd Deridon Chatered Accounts ZWHHC 184/25 NMB Bank Ltd* v *Tawanda Mushave and Ors* SC 146/21.

In the present matter the proceedings between the parties are yet to be decided upon, and as such, it is highly unlikely that the Supreme Court will entertain an appeal of this nature. Clearly, the order that is intended to be appealed against is not final and dispositive of the matter in that it does not affect in a final and dispositive manner the issues between the parties which will be determined in the main matter. The matter is still alive and is before this court. The judgment sought to be appealed against merely set aside a judgment that was granted in default in order to ensure that the parties are all given a fair right to be heard.

In the final analysis, I conclude that the legal issues raised in this application lack merit. The application herein has failed to prove on a balance of probabilities that the appeal itself enjoys strong prospects of success. I take the view that it is doomed to fail.

In the result, the application for leave to appeal is dismissed with costs.

TAKUVA J:……

Lawman Law Chambers, applicant's legal practitioners
B Ngwenya Legal Practice, first respondent's legal practitioners